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City Commission Regular Meeting

Meeting Minutes

July 21, 2026, 4:00 PM

121 North Rouse, Bozeman, MT, US

A. Call to Order

Mayor Joey Morrison called the City Commission Regular Meeting to order at 4:00 PM in the Commission Room at City Hall, 121 North Rouse, Bozeman, Montana. Mayor Morrison welcomed those present in the chamber and noted the earlier-than-usual start time, explaining the Commission wished to allow sufficient time for the day's substantive agenda items.

Present: Mayor Joey Morrison, Deputy Mayor Douglas Fisher, Commissioner Emma Bode, Commissioner Terry Magic, Commissioner [Sweeney]

Absent: None noted.

B. Pledge of Allegiance and a Moment of Silence or Mindfulness

Mayor Morrison invited those able to stand for the Pledge of Allegiance, which was led by a member in attendance, followed by a moment of silence.

C. Changes to the Agenda

City Manager Chuck Winn announced one change: the Mayoral Proclamation (Item J.1) would be moved to the first item following public comment on non-agenda items, to be taken up before the Work Session.

D. FYI

Commissioner Magic announced an upcoming walking tour of Bozeman Creek, originally scheduled for Friday, July 25th but corrected to Friday, July 31st at 7:30 AM, meeting in front of City Hall. He noted the walk would be informed by the recently released Bozeman Creek vision plan and would be announced again the following week on the City website.

Commissioner Sweeney announced that on the following evening, Wednesday, July 22nd at 6:00 PM at Beal Park, he and Commissioner Bode would conduct a walking tour of zone edge transitions with neighborhood residents, gathering feedback on that planning topic. He noted Commissioner Magic would join a second iteration of the same tour on Monday, July 27th, to offer additional opportunities for public participation.

Mayor Morrison highlighted the upcoming first annual ADA Month Celebration on Saturday, July 26th — one day before the 36th anniversary of the signing of the Americans with Disabilities Act — to be held at Windley Park from 9:00 AM to 4:00 PM. The event would include a ribbon cutting for new accessible trails at Windley

Park, a 5K run/walk/roll/stroll, remarks from the Mayor, the proclamation reading, and the unveiling of a new downtown accessible parking map. Mayor Morrison expressed gratitude for the close partnership with Ability Montana, stating the City would not have been able to accomplish its ADA-related work without their support and guidance.

City Manager Winn had no additional FYI items.

E. Commission Disclosures

No disclosures were offered by any member of the Commission.

F. Approval of Minutes

F.1 Approval of Regular City Commission Meeting Minutes from March 24, 2026

Commissioner Magic moved to approve the minutes from the March 24, 2026 Regular Meeting. The motion was seconded.

Prior to the vote, Commissioner Sweeney moved to amend the minutes to correct a recorded vote on the approval of the amended conditional approval of the Sundance Springs Commercial Lot Two Site Plan (25238). The minutes had recorded the vote as carried five to zero; Commissioner Sweeney requested the correction reflect the motion carried four to one, with himself as the dissenting vote. The amendment was seconded.

Motion to amend the March 24, 2026 Regular Meeting minutes to correct the recorded vote on the Sundance Springs Commercial Lot Two Site Plan (25238) from five to zero to four to one, with Commissioner Sweeney as the dissenting vote, was made by Commissioner Sweeney and seconded. The motion carried 5–0.

The amended minutes were approved unanimously.

G. Consent

City Manager Winn drew the Commission's attention to two items of note. Regarding Item G.13 (Task Order 4 with Cushing Terrell for the Fowler Neighborhood Design Workshop), he emphasized that this action was consistent with the community consensus process for the Fowler Housing Project and that no decisions had been predetermined; the upcoming Phase 3 meetings were scheduled for August 10th and 11th. Regarding Item G.15, he advised that the legal description in the body of the resolution contained a typographical error — the subdivision name was spelled "ANNE" in error and should read "ANNIE" — and that the dollar amount had been corrected to \$232.80. An amended motion was prepared accordingly.

Public comment was opened. Mark Campanelli, a Bogart Park resident, offered comments related to Item G.14, the Bozeman Solar Project renewal. He expressed enthusiasm for the project and its educational partnership with MSU students. He urged that future agreements incorporate price discovery provisions for the electricity generated, and noted his background conducting postdoctoral work on solar measurements at the National Renewable Energy Lab.

No additional public comments were received in-person or online.

Motion to approve Consent Items G.1 through G.15, with the amended resolution as described by the City Manager for Item G.15 (correcting the legal description to "ANNIE" Subdivision and the amount to \$232.80), was made by Commissioner Sweeney and seconded. The motion carried 5–0.

H. Public Comment on Non-agenda Items Falling Within the Purview and Jurisdiction of the Commission

Mayor Morrison opened general public comment on non-agenda items.

Daniel Cardi, a Bozeman resident, addressed two topics. First, he expressed concern about the ongoing destruction of public trees by private developers, citing the removal of at least four green ash trees on Lambie by the Homebased Partners luxury hotel project, the removal of at least three public trees near the climbing rock at Bozeman Yards, and damage caused to a green ash at the intersection of North Third and Westfield by gas line contractors operating heavy equipment through the tree canopy. He argued these destructions were inconsistent with the Commission's stated priority of protecting Bozeman's natural environment. Second, he commended the Historic Preservation Advisory Board for its meeting the prior week, in which the board strenuously opposed the preliminary draft of the NCOD update offered by the Lakota Group, instead focusing on the importance of neighborhood character — also identified as a Commission priority.

Mark Campanelli returned to the podium to reflect on the Bozeman Yards TIF project. He recalled key financial figures from the Baker Tilly financial report, including the project's estimated internal rate of return with and without city assistance, the sales price per square foot for affordable versus market units, and the city's financing structure involving public infrastructure and TIF bonds. He expressed skepticism about representations made to the Commission at the time of approval compared to how the project was subsequently described, and cautioned the Commission to be vigilant about similar situations arising in the future.

Emily Flaggo (participating remotely) raised a procedural concern about meeting schedule predictability. She observed that the city code specifies regular Commission meetings occur on the first four Tuesdays of each month starting at 6:00 PM, yet recent meetings had begun significantly earlier — the present meeting having started at 4:00 PM, with the June 23rd meeting having started at 5:30 PM, and August 4th scheduled for 3:00 PM. She acknowledged the Commission's authority to hold special meetings and work sessions, and that the intent was clearly to manage a growing workload effectively. Her request was that when meetings depart from the regular scheduled start time, the departure be made clearly obvious — for example, by labeling the meeting as a special meeting or prominently noting the altered start time — so that members of the public who plan around the standard 6:00 PM start time are not inadvertently excluded from participating in consequential decisions.

No further public comments were received in-person or online. General public comment was closed.

J. Mayoral Proclamation

J.1 Mayoral Proclamation Proclaiming Americans with Disabilities Act Month

Mayor Morrison read a proclamation recognizing July 26th, 2026 as Americans with Disabilities Act Awareness Day in the City of Bozeman, coinciding with the 36th anniversary of the signing of the ADA. The proclamation recognized the ADA's role in ensuring the civil rights of citizens with disabilities, affirmed the principles of equality and inclusion as embodied in state and local law, and acknowledged the work of organizations such as Ability Montana in realizing the promise of the ADA. The proclamation was presented to a representative of Ability Montana present at the meeting, with full ceremony noted as forthcoming at the Saturday celebration event.

I. Work Session

I.1 Advisory Board Work Session

City Manager Winn introduced Assistant City Manager Cola Rowley for her first presentation before the City Commission, framing the work session as a fulfillment of the Commission's adopted priority to review city advisory boards. He noted that the 2021 board consolidation — which reduced more than 40 advisory boards to 16 — had carried a commitment to revisit the changes after five years, and that time had arrived.

Staff Presentation

Assistant City Manager Rowley presented the findings of an internal review of the five consolidated "super boards" and the Historic Preservation Advisory Board (HPAB), which had requested to be included. She described the review methodology: interviews with staff liaisons, board chairs, the clerk's office, and individual commissioners; a survey of current board members; and review of governing documents, most notably Resolution 5323, which governs board operations. She also drew on her own experience with boards in other government settings.

Rowley reported that the overarching finding among all internal participants was that the 2021 consolidation was successful — broadly viewed as more streamlined, efficient, and less confusing for the public, while concentrating higher-quality board candidates. She described the board's concerns as having quickly turned to areas for potential improvement, which she organized into four thematic buckets:

- Structural and organizational adjustments — issues of board composition, misplaced functions (recreation sitting under sustainability; sustainability's integration across boards), removal of the commissioner as a voting member from the Community Development Board, and the use of standing versus ad hoc boards.
- Communication and process improvements — work plan processes not being followed; lack of a reporting feedback loop; inconsistent recruitment; absence of work sessions in the model agenda; non-occurrence of required six-month check-ins; and the desire for inter-board joint meetings.
- Autonomy and meaningful participation — board members expressing feelings of being a "checkbox" or "afterthought," being engaged too late in processes to meaningfully shape outcomes, and perceiving that staff led or managed boards rather than supported them.
- Training, education, and expectation setting — including ambiguity in interpreting provisions such as the "one body, one voice" rule, and the need for consistent onboarding.

Rowley presented a three-part work session guide for Commission discussion: (1) how should boards be structured and how formally should they operate; (2) how should communication work between the Commission and among boards; and (3) what is the right amount of autonomy and how do we foster purpose and meaning for members.

Public Comment on Work Session

Daniel Cardi offered six recommendations: (1) eliminate the "one body, one voice" provision and replace it with a process ensuring the Commission is informed of split votes and dissenting opinions; (2) allow boards to meet jointly on occasion; (3) ensure commission liaisons actively participate without forcing boards in a predetermined direction; (4) shift the culture so staff liaisons support rather than lead boards; (5) engage boards earlier in projects and policy development; and (6) provide training on meeting procedures and facilitation. He also expressed concern regarding potential conflicts of interest on the Community Development Board, and advocated for term limits capped at no more than two terms.

Mark Campanelli reflected on his observation of board meetings, noting what he perceived as a lack of genuine dialogue and discussion at the Community Development Board meeting the prior evening. He advocated for more conversational formats, suggested boards consider public "office hours" before work sessions to allow for more dialogic engagement, and reiterated concerns about a conflict of interest he had previously raised regarding the TIF board.

Emily Flaggo (remotely) expressed enthusiasm for the work, describing well-functioning boards as operating like a "rock tumbler" — polishing a policy proposition through successive rounds of expert review before it reaches the Commission for final action. She described a useful "book club" model used at the Inter-Neighborhood Council, wherein board members watched a recorded staff presentation in advance so that meetings could focus on discussion rather than re-presentation. She also noted that city code does not bind work sessions to Robert's Rules of Order, and expressed hope that the efficiency insight regarding shared staff presentations across boards could be leveraged.

Commission Discussion — How Should Boards Be Structured and How Formally Should They Operate?

Deputy Mayor Fisher opened the discussion by framing the purpose of advisory boards as helping the Commission make the best possible decisions by drawing on community expertise. He advocated for loosening formality, particularly outside of the Community Development Board context, and suggested that boards dealing primarily with policy — transportation, sustainability, economic vitality — could operate with less rigidity. He expressed support for clearer authorization of work sessions for all boards.

Commissioner Bode spoke in measured support of retaining Robert's Rules of Order, arguing that they are valuable when discussions become contentious and that boards serve as a "leadership ladder" — a pathway for community members who may later run for office. She suggested the real problem was insufficient training on the rules rather than the rules themselves, and proposed video training modules so that every board member receives consistent onboarding. City Attorney Greg Sullivan clarified that boards are not bound to strict adherence to Robert's Rules, that the standard had always been that as long as the membership and the public can follow along, deviations are acceptable, and that there is no prohibition on work sessions — the absence from the model agenda having created a cultural misunderstanding rather than a legal one.

Commissioner Magic expressed a desire to see the pendulum "loosen up" significantly from the rigidity that had characterized the 2021 framework. He noted he had observed board members showing up to Commission meetings to speak to issues even under the "one body, one voice" provision, and had found value in hearing from them. He was supportive of softening or eliminating that provision and called for a broader cultural shift toward empowering boards. Commissioner Sweeney agreed that boards should be explicitly permitted to hold work sessions and that video training modules were a sound idea.

On the specific structural recommendations, there was broad Commission agreement on the following:

- Remove the commissioner as a voting member of the Community Development Board, now that M-LUPA no longer requires it, while maintaining the commission liaison role.
- Move recreation out of the Sustainability Board and into the Urban Parks and Forestry Board, where it is a more natural fit.
- Explore renaming the Sustainability Board to better reflect a broadened scope — Deputy Mayor Fisher suggested "Environmental and Water Board"; Commissioner Bode suggested "Sustainability and Environment"; Commissioner Magic suggested "Conservation" as an alternative term. No final name was determined, but there was consensus that the current name and scope were too narrow relative to the board's actual and desired purview.
- Add wetlands and water conservation explicitly to the Sustainability Board's resolution.
- Public art and beautification: Commissioner Magic floated the idea of an annual per-project ad hoc committee for 1% for Art decisions rather than housing the function within Economic Vitality. Commissioner Sweeney suggested the beautification awards function could be transferred to the Inter-Neighborhood Council (INC).
- Reject the proposal for designating one board member per board with sustainability expertise, as it was deemed unworkable in practice; the preferred substitute was including the city's climate plan and Belonging in Bozeman plan in universal board member training.
- Improve inter-board coordination and allow joint meetings. Commissioner Sweeney cited meaningful crossover between Historic Preservation, Urban Parks, and Community Development.
- Quorum should be defined as a majority of authorized members (not just appointed members), to create accountability for filling vacancies.

On term limits, a notable divergence of opinion emerged. Commissioner Magic stated his longstanding opposition to term limits, arguing they are anti-democratic and that the commission at any given time retains the discretion not to renew a board member. Commissioner Bode argued in favor of term limits, noting that before consolidation it had been difficult for younger and newer community members to get seats on boards that had been dominated by long-tenured members. Deputy Mayor Fisher expressed mild support for retaining term limits, perhaps extending to three terms, while Commissioner Sweeney also expressed support for them as a mechanism for ensuring fresh voices. Mayor Morrison stated he personally preferred eliminating term limits but acknowledged he was not prepared to die on that hill, and noted that holdover provisions already protect continuity in the event of vacancies. City Attorney Sullivan clarified that holdover provisions

mean that a termed-out member's votes remain valid until a replacement is appointed. The Commission agreed to defer a final decision on term limits.

Commission Discussion — Communication Between the Commission and Among Boards

Commissioner Magic framed this segment by stating that Resolution 5323 had produced a "very rigid" system intended to rein in problematic behavior, and that the time had come for the pendulum to swing back. He advocated for softening or eliminating the "one body, one voice" provision and suggested it be replaced with simple guidance that board members who wish to speak to the Commission identify themselves as a board member speaking in their individual capacity. He proposed creating more regular channels for board chairs to report to the Commission — perhaps through brief summaries or participation in Commission work sessions.

Commissioner Sweeney was equally direct in supporting removal of the one-body-one-voice language, stating he had seen it used to intimidate board members and had heard from potential applicants who declined to apply because they felt they would be "gagged." He expressed support for a board secretary model in which a written summary — capturing both the majority position and any dissenting opinion — could be submitted to the Commission, potentially via public comment, as a concise record.

Commissioner Bode offered a more nuanced position: she was not attached to the specific language of one body, one voice but was wary of having all seven board members come before the Commission to repeat what was already on the record. She proposed a formal dissenting opinion mechanism — analogous to a Supreme Court dissent — in which a dissenting board member would write up their position within a defined timeframe and word count, to be included in the Commission packet. She argued this would be more useful than allowing board members to give additional public comment, while giving dissenters a clear and dignified outlet.

Deputy Mayor Fisher expressed uncertainty about the magnitude of the problem being solved, noting that staff reports already typically capture dissenting votes and the discussion behind them. He was more focused on enabling ideas and proposals to percolate upward from boards to the Commission, and on improving the two-way flow of information.

Mayor Morrison shared a similar skepticism about formalizing the dissent mechanism, noting that in every staff report he had seen, dissenting votes and rationale were already captured. He noted that if one-body-one-voice were simply struck, board members would already be free to submit public comment, which would address the concern without creating a new bureaucratic process. City Manager Winn reminded the Commission that the resolution places the obligation on the commission liaison to bring board actions to the Commission, and that this role had gotten confused over time.

City Attorney Sullivan clarified the history of the one-body-one-voice provision: it had been designed to prevent board members from appearing before the Commission and misrepresenting the board's overall position, particularly when they were in the minority. The current practice of board members identifying themselves as speaking in a personal rather than representative capacity had developed as a cultural workaround.

The Commission reached a general consensus that the one-body-one-voice provision should be stricken, with board members free to give public comment as private citizens identifying their board affiliation, and without institutionalizing a formal written dissent mechanism in the way Commissioner Bode had proposed, though some commissioners remained supportive of that concept.

On the commission liaison role, the Commission discussed what constitutes appropriate engagement. Commissioner Magic advocated for active but careful involvement — providing background, serving as a conduit to the city manager, and helping boards operate effectively, while avoiding advocacy for personal positions during board meetings. Commissioner Sweeney noted that the resolution identifies the commission liaison role as serving as "contact rather than advocate," and she expressed uncertainty about when and how liaisons could appropriately communicate with staff liaisons, noting she had in one instance been cautioned for what was characterized as inappropriate contact. City Manager Winn offered to sit down with Commissioner Sweeney individually to clarify those protocols. Commissioner Bode supported requiring board chairs to participate in the applicant interview process. There was broad agreement that interview questions should be allowed to vary by board to capture relevant qualifications and scheduling availability.

Deputy Mayor Fisher proposed that the six-month work plan calendar for the Commission be better integrated with board work plans, so that boards receive advance notice of what will be coming before the Commission

and can time their deliberations to be formative rather than reactive. Commissioner Bode elaborated that this could look like identifying, at the time an item is placed on the Commission's six-month calendar, which advisory boards the Commission wants to hear from before its own deliberations.

Commission Discussion — Autonomy, Meaningful Participation, and Fostering Purpose

Commissioner Sweeney opened this segment by proposing that boards be allowed to add items to their own agendas outside of their approved work plans. She described the current dynamic in which staff liaisons effectively filter what boards address as potentially stifling to the expertise and creativity of board members. She proposed a structured mechanism by which boards could, on a quarterly or semi-annual basis, bring emerging issues to the Commission for a brief pitch — not a full action item — to request authorization to explore a topic further. She also advocated for boards to be consulted during the Commission's priority-setting process, so that board perspectives on emerging community issues could inform the Commission's two-year work plan before it is finalized.

Commissioner Bode expressed support for giving boards more authority over their work plans, noting that the economic vitality board's July meeting had been canceled, and that if the Commission had wanted a recommendation from that board before the August housing work session, it would not be forthcoming. She cited Missoula's recent interim zoning ordinance for data centers as an example of the kind of nimble policy response that boards should be positioned to inform.

Deputy Mayor Fisher drew on his experience on a pre-consolidation board in which the board chair and vice chair effectively drove a personal agenda with no clear connection to Commission priorities, consuming substantial staff time. He cautioned against over-empowering boards to generate their own agenda items, while acknowledging the need for some formal outlet for ideas emerging from boards outside the work plan cycle. He suggested annual joint work sessions with each advisory board as a structured venue for that two-way dialogue.

Commissioner Magic argued for a middle path: the system as it exists can accommodate board-generated proposals, but the mechanism is through the commission liaison — a board member with an urgent concern should engage their liaison, who can then determine whether three votes exist to bring it before the full Commission. He cautioned against institutionalizing a channel by which boards could compel the Commission to take up agenda items, characterizing that as transforming advisory boards into political operatives.

Mayor Morrison agreed that the interim zoning ordinance example actually illustrated the system working as intended — three commissioners did not want to take up the item, so it did not advance. He was uncomfortable with creating a formal channel by which boards could place items on the Commission agenda without that threshold being met, noting that doing so would send a signal that items are up for debate when in fact a majority of the Commission may not wish to take them up. He drew a distinction between that concern and the broader question of giving boards more authority to define their own work within their established purview.

City Manager Winn offered a caution that even seemingly simple questions directed to staff can result in hours of work, and that if boards were empowered to direct staff, that could quickly conflict with Commission-set priorities. He reminded the Commission of the bike board's dissolution — which had become an advocacy board rather than an advisory one — as a cautionary example.

The Commission did not reach a definitive structural resolution on the autonomy question, but there was clear consensus around the following directional guidance:

- Boards should be engaged earlier in the development of policies and plans, so that their input is formative.
- Commission liaisons play a critical role in facilitating that earlier engagement.
- Joint meetings between the Commission and advisory boards, and between advisory boards themselves, should be enabled and encouraged.
- The framework for any formal mechanism allowing boards to propose additions to their work plans should be time-bounded and carefully designed to avoid consuming disproportionate staff capacity.

- Ad hoc committees and focus groups remain valuable tools for discrete, time-limited projects and the Commission retains authority under the charter to create temporary advisory committees at any time.

City Manager Winn closed by thanking the Commission for the rich discussion and committed to returning with proposed changes to Resolution 5323 and related documents reflecting the Commission's guidance.

J. Mayoral Proclamation (moved earlier in the agenda)

(See Item J.1 above, addressed following Item H.)

K. Special Presentation

K.1 Kagy Boulevard Construction Update

Transportation Engineering Director Nick Ross presented a construction update on the Kagy Boulevard reconstruction project — described as the largest transportation project in the city's history. He reviewed the previously approved project scope: reconstruction of Kagy Boulevard from 19th Avenue to Wilson Avenue with a multi-lane typical section (generally two lanes in each direction) separated by a landscaped median; a 100-year design stormwater system; street lighting; landscaping; shared-use paths in both directions; two new roundabouts (at 11th and 7th); two pedestrian tunnels (at 11th and 7th); and two modified traffic signals (at 19th and Wilson). The Wilson signal would be rebuilt to remove the eastbound-to-southbound slip lane and incorporate protected intersection elements for improved bike and pedestrian safety.

Director Ross announced two major updates. First, following the city's receipt of approximately \$25 million in federal grant funding, the Montana Department of Transportation (MDT) — which is leading project delivery — selected a design-build delivery method to meet grant obligation timelines, resulting in the selection of the team of CK May Excavating (prime contractor) and DJ&A (engineer of record). This team submitted both the highest-rated technical proposal and the lowest price. Second, and most significantly, CK May proposed an accelerated construction schedule that would substantially complete the entire project in approximately one year, compared to the originally anticipated two to three years.

The proposed schedule involves CK May beginning work in March 2027 on the outer corridor improvements while maintaining traffic on the existing two lanes. During the allowable three-month closure window (when university is not in session, approximately May through August), crews would expand to build the roundabouts, tunnels, and the roadway segment between 11th and 7th. The full project is anticipated to be substantially complete by end of 2027, with supplemental items such as landscaping, lighting, and path finishing completed in early 2028. The prime contractor is obligated under penalties to meet this schedule.

The planned signed vehicular detour during the closure will route traffic via South 19th to Graf and up South Third, supported by a temporary traffic signal at the South Third/Graf intersection. The city will additionally install rectangular rapid flashing beacons permanently at two locations along South Third (at Westridge and Arnold) to improve pedestrian crossings in advance of anticipated increased traffic during construction.

Director Ross addressed a question from Commissioner Bode regarding the ADA-compliant bike and pedestrian detour during the closure. He explained that, because constructing the tunnels requires raising the roadway by three to four feet, no accessible route can be maintained through the construction zone, and the closest accessible crossing will be at Wilson to the east. He acknowledged there is no ideal solution given the school campus creating a barrier to the street grid.

Deputy Mayor Fisher inquired about the pedestrian connection at the Kagy/Wilson intersection, specifically regarding children walking to Sacajawea Middle School. Director Ross explained that a 10-foot shared-use path will be constructed from the alligator trail cul-de-sac to the northeast corner of the Kagy/Wilson intersection, and that the intersection geometry will be tightened and a leading pedestrian interval added to the signal to improve crossing safety. He acknowledged the loss of the originally contemplated at-grade tunnel on the alligator trail alignment, which was not achievable due to the inability to secure right-of-way from MSU and the Museum of the Rockies. Director Ross noted that a future overpass is preferred from an engineering

standpoint — a subsurface tunnel at that location would require going nearly 20 feet below grade due to high groundwater — and expressed optimism about continuing conversations regarding a grade-separated crossing as a future capital project.

L. Action Items

L.1 Approval of the Community Engagement Plan for the 2027 Transportation Master Plan Update

City Engineer Emiliano Esparza presented the Community Engagement Plan for the 2027 Transportation Master Plan Update (TMP 27), the city's comprehensive ten-year update to its 2017 transportation master plan. He described the project team — led by Director Ross as project principal, with Esparza as project manager and Taylor Lonsdale as technical advisor — and the consultant team, consisting of Sambi (project management and community engagement), Kiddo's and Associates (transportation, social, economic, and safety consulting), and Logan Simpson (road ecology and sensitive lands consulting).

Esparza explained that the TMP 27 would build upon previously completed plans, including the Safety Action Plan (currently in development under the Safe Streets for All effort), the 2025 bike and pedestrian gap analysis, and the 2023 Sensitive Lands Plan. He outlined the purpose of the engagement plan: to build awareness, foster inclusive participation, gather meaningful input, encourage collaboration and transparency, and document feedback.

The engagement strategy places the effort at the "consult" level on the city's public participation spectrum — sharing goals and objectives, seeking feedback to refine them, and circling back with recommendations — while remaining flexible to evolve based on public feedback and Commission direction. Engagement will be facilitated through a dedicated Engage Bozeman project website with regular updates, surveys, and a public comment matrix; a citywide open house; regional workshops focused on area-specific needs; and consultation with the Transportation Advisory Board, Sustainability Advisory Board, and Community Development Board. Community engagement for the TMP 27 and the Safety Action Plan will be conducted jointly to preserve the connection between safety and transportation network planning.

The timeline runs from the current period through December 2027, with goals and analysis work occurring from August through December 2026, future scenarios and projections developed through mid-2027, a final draft released for public comment, and adoption targeted for December 2027.

Commissioner Bode expressed appreciation that the plan cited the Sensitive Lands Plan and pedestrian gap analysis, noting their importance to informing safety. She questioned why the engagement level was set at "consult" rather than "involve" or "collaborate," particularly for the safe streets components. Esparza affirmed that the starting point of "consult" is appropriate given the technical nature of the overall plan, but that the level could be elevated for specific elements based on public feedback. Commissioner Bode requested that the safe streets component specifically be held to a higher engagement level in due course.

Deputy Mayor Fisher asked how visionary thinking — for example, making Bozeman a genuinely bike-oriented city — would be incorporated into the process. Esparza affirmed the need for a holistic approach building on all prior plans and indicated that public feedback would be a key ingredient in defining the community's transportation vision.

Mayor Morrison raised the importance of engaging regional partners — the Metropolitan Planning Organization, the Urban Transportation District, Belgrade, MDT, MSU, and Big Sky — noting that significant travel demand affecting Bozeman's network is generated by regional factors including airport traffic and commutes to Big Sky. Esparza confirmed the consultant team was already examining macro-level regional travel patterns and would identify relevant engagement partners accordingly.

Commissioner Sweeney moved to approve the community engagement plan and proposed, as a condition of the Commission's direction, that a dedicated presentation and engagement session be added with the Inter-Neighborhood Council. City Manager Winn confirmed staff would arrange for a presentation to INC and encouraged INC members to participate in the regular engagement process as well.

Public comment was received from Mark Campanelli, who walked to the meeting from his neighborhood and described pedestrian safety concerns along South Church Avenue, including speeding vehicles, inadequate sidewalk placement near Bogar Place, and dangerous crossings at Babcock and Main Street near Longfellow School. He urged the Commission to engage at a neighborhood-specific level as the plan develops and noted that the Story Street reconstruction process had not achieved full consensus with neighbors.

Belgrade Mayor Mike Meese offered a public comment commending the spirit of regional collaboration and noting that UTD and the MPO were actively working on a route that would connect Bozeman to the airport and loop through Belgrade, with airport support. He expressed appreciation for Commissioner Bode's work on the UTD board.

Motion to approve the Community Engagement Plan for the 2027 Transportation Master Plan Update was made by Commissioner Magic and seconded. The motion carried 5–0.

Commissioners expressed broad enthusiasm for the process, with Commissioner Magic articulating his hope that the plan would catalyze a genuine shift in community vision toward safer streets, more traffic calming, and robust alternatives to the personal automobile.

L.2 Authorize the City Manager to Sign the Green Power Program Lead Community Agreement with NorthWestern Energy

Sustainability Program Manager Natalie Meyer presented the request to authorize the City Manager to sign the Green Power Program Lead Community Agreement with NorthWestern Energy. She introduced Charlie Lane, Director of Regulatory Affairs for NorthWestern Energy, who offered brief introductory remarks.

Mr. Lane expressed appreciation for the opportunity to work with Bozeman and partner communities on expanding customer options for renewable energy, and offered particular acknowledgment of Natalie Meyer's role in keeping the program alive through years of difficulty. He stated: "Projects like these rarely move in a straight line. There are starts and stops and priorities shift... The fact that we are here tonight is really a testament to the people who embody that public service," and singled out Meyer as "a steady and consistent advocate for finding a path forward through changes in staff, changes in circumstances, and more than a few challenges along the way."

Meyer then walked the Commission through the substance of the agreement and its context.

She explained that for Bozeman and its partner lead communities (the City and County of Missoula), the Green Power Program represents the most significant available opportunity to advance toward the city's 100% net clean electricity goal within Montana's current regulatory environment, given the absence of a renewable energy standard at the state level, the 50-kilowatt cap on net energy metering, and the lack of community solar enabling legislation. She noted these limitations make voluntary utility-scale programs the primary available pathway.

A green power program — also known as a green tariff — allows customers of a regulated utility to voluntarily purchase power from a newly developed renewable energy facility through a special rate on their utility bill. Meyer emphasized this is an established concept nationally, with commercial and institutional buyers having driven approximately 40% of installed clean energy in the U.S. since 2014 through such voluntary agreements.

The program's three guiding principles, adopted when the Commission approved the term sheet, are: (1) develop new, utility-scale renewable energy in Montana; (2) make the program as accessible and attractive as possible to as many customers as possible; and (3) ensure the program does not negatively impact non-participating customers (i.e., no cost-shifting). The anticipated resource would be a new solar or wind facility, potentially paired with storage, located in Montana, owned and operated by NorthWestern, and capped at 50 megawatts for the initial phase. Meyer illustrated the scale by noting that 50 megawatts is a thousand times larger than the 50-kilowatt net metering cap, and that targeting 35% of Bozeman's commercial load to subscribe could subscribe roughly 8.2 megawatts, moving the city approximately 10% closer to its clean energy goal.

Program eligibility extends to all local governments, commercial and industrial general service customers within NorthWestern's service territory, and — where the local jurisdiction enables it — residential customers

in participating communities on a short-term opt-in basis. Renewable energy certificates associated with the generation will be retired on behalf of participants to avoid double-counting.

Regarding program rates, Meyer explained there are two components: a fixed cost derived from the actual cost to build, operate, and maintain the facility (spread over the depreciable life of the project, established after the RFP), and a floating credit based on market energy value plus a capacity credit. Early modeling indicated a modest premium over standard rates, though Meyer cautioned that expiration of federal tax credits, tariffs, and supply chain factors could materially affect the economics.

Meyer walked through the timeline of the program's development: the 2019 provisional adoption of the city's 100% clean electricity goal; the PSC's 2019 directive to NorthWestern to investigate a green tariff; Missoula's 2020 MOU; the city's December 2020 climate plan adoption; the 2021 interlocal agreement with Missoula County, the City of Missoula, and Helena (which later stepped back from a lead community role); the January 2024 sustainability board recommendation; and the Commission's adoption of the term sheet.

The Lead Community Agreement before the Commission this evening defines roles and responsibilities for the lead communities and NorthWestern to jointly file the program tariff with the Montana Public Service Commission by September 15, 2026 (with provision for extension by mutual agreement). The agreement includes a non-binding initial notice of interest representing the city's anticipated municipal electricity load. Meyer noted the city's eligible load figure had decreased over time due to energy efficiency, conservation measures, and anticipated generation from the WRF solar project.

Meyer summarized the four sequential steps ahead: (1) approving the Lead Community Agreement and submitting the notice of interest — the action before the Commission tonight; (2) filing the tariff at the PSC; (3) recruiting commercial and industrial subscribers and collecting notices of interest; and (4) approving a subscription agreement — which constitutes the binding, long-term commitment. She stressed that tonight's action commits the city to filing with the PSC and to paying RFP costs if the project does not advance, but does not commit the city to subscribing to power. The binding subscription agreement would come before the Commission in a future step.

The Sustainability Board voted unanimously in support of advancing the Lead Community Agreement at its July meeting.

Commissioner Sweeney asked whether commercial and industrial customers had been engaged in drafting the subscription agreement terms. Meyer confirmed that engagement with interested commercial entities had occurred throughout the multi-year process. Deputy Mayor Fisher expressed appreciation for the accessibility of the presentation and asked for confirmation of the process by which the final notice of interest load figure would be established; Meyer confirmed it would be based on the aggregated notices of interest collected from all participants and would be updated before the binding subscription phase. Commissioner Magic confirmed that Helena, while stepping back from a lead community role, could still participate as a subscriber, and asked whether other communities in Montana could join. Meyer confirmed that any community or customer within NorthWestern's territory could participate. Mr. Lane explained in response to Commissioner Magic's question that the PSC review would encompass the full program design — not merely a rubber stamp — and that the program had been designed to ensure non-participants were fully protected from cost-shifting, which the Commission was expected to appreciate. Commissioner Magic also asked whether the infrastructure needed to connect a new resource existed; Mr. Lane explained that interconnection costs and infrastructure would be evaluated as part of the RFP process for each bidding generator.

Public comment was received from Mark Campanelli, who offered technical perspective on levelized cost of energy for solar and wind relative to current residential rates and peaker plant costs. He expressed general support but noted concerns about the process of price discovery coming very late in the process, questions about what benefits NorthWestern retains beyond the program, and urged the Commission not to overlook challenges such as storage costs for commercial and industrial customers. He also raised environmental considerations associated with large-scale utility solar manufacturing.

No online public comments were received.

Motion to authorize the City Manager to sign the Green Power Program Lead Community Agreement with NorthWestern Energy was made by Commissioner Sweeney and seconded. The motion carried 5–0.

Members of the Commission offered extensive remarks in support of the motion. Deputy Mayor Fisher reflected that he had at times been tempted to abandon the program given the years of setbacks, and expressed profound admiration for Natalie Meyer's tenacity in holding the coalition together. Commissioner Bode noted she had first heard of the green tariff concept while working as a community organizer with Forward Montana and had watched the program's slow progress from multiple vantage points; she declared it "really, really thrilling to finally be here today." She honored former Mayor Terry Cunningham's contribution, quoting his written tribute to Meyer: "Natalie is a true strategic visionary, and her tactical skills have kept the playing field balanced when it could have become an organizational mismatch." Commissioner Magic offered his congratulations and expressed excitement at seeing the program move forward. Mayor Morrison, in declining to take individual credit for "carrying the torch," named the many staff members, former commissioners, and partner jurisdiction staff who had collectively sustained the effort over years, and stated that no matter how many hands had been on the project, "without Natalie, we would not be here tonight."

L.3 Ordinance Dissolving Department of Strategic Services and Creating Department of Communications & Engagement

City Manager Winn presented the ordinance for provisional adoption. He explained that Bozeman's organizational structure has evolved to reflect community needs and Commission direction over the years, and that this action was responsive to the Commission's adopted priority to "engage meaningfully with the community." The intent was to elevate the communication and engagement function from a division within the City Manager's office to a full department with a seat at the director team table, in order to more deeply weave engagement principles throughout all of the city's work. He noted that this structure had the potential to improve community connection, strengthen trust in local government, and support better public decision-making.

Winn noted the ordinance would be provisionally adopted this evening, return for final adoption on consent in two weeks, and take effect 30 days thereafter. He noted that Jon Henderson, who had led strategic services and communications, had already departed the meeting, but his work was central to the rationale for the restructuring.

Commission members had no substantive questions, having engaged with staff in advance. Commissioner Bode noted she had learned about the concept of "orphan divisions" — divisions without a parent department — through her prior conversations with staff. Commissioner Sweeney offered enthusiastic support and used the occasion to recognize Jon Henderson's remarkable breadth of skill, noting that the reorganization had in part been prompted by the recognition that finding a single replacement capable of doing everything Henderson had done would be impossible, and that restructuring to support specialized leadership in each division was the appropriate response going forward.

Mayor Morrison referenced the city charter's express authorization for the Commission to create or abolish departments, citing it as the formal basis for the action — which drew a smile from City Attorney Sullivan. Mayor Morrison expressed agreement with the substance of Commissioner Bode and Sweeney's tributes to Henderson's service.

No public comments were received in-person or online.

Motion to provisionally adopt the Ordinance Dissolving the Department of Strategic Services and Creating the Department of Communications & Engagement was made by Deputy Mayor Fisher and seconded. The motion carried 5–0.

M. FYI / Discussion

Deputy Mayor Fisher briefly raised the public comment made earlier by Emily Flaggio regarding meeting schedule predictability, noting that a resident had arrived at 6:00 PM expecting to give public comment only to find the meeting already substantially underway. He proposed that the Commission consider adopting a more predictable format — for example, holding work sessions from 4:00 to 5:45 PM at time-certain and beginning action meetings at 6:00 PM on a consistent basis — so that members of the public could plan accordingly.

Commissioner Magic echoed support for greater predictability and noted the commenter's name was Flaggo, not "Tago" or "Togo" as it had been mispronounced at multiple points in the evening.

Commissioner Sweeney reported that the Tax Increment Finance Board had been unable to achieve quorum at its prior meeting, and that the postponed action items — including an application for TIF assistance in the northeast neighborhood — would be taken up at the next meeting. She also noted that the Historic Preservation Advisory Board had met with the Lakota Group regarding the NCOD and design guidelines update; she confirmed that Mr. Cardi's characterization of the meeting as reflecting significant board and neighborhood opposition to the direction of the draft was accurate, and that the board had provided substantive clarity on where it wanted the process to go. Further updates would follow.

Commissioner Bode offered a brief update on the Urban Transportation District Board, which had conducted an exercise ranking potential system improvements recommended by consultants — more improvements than current funding could support. She reported that the board had prioritized a subset of improvements it found most compelling, which would likely be brought to the community in the future as part of a potential levy question.

City Manager Winn offered a clarifying update on the three trees removed near the climbing boulder at Bozeman Yards, in response to public comments raised earlier in the evening by Daniel Cardi. He stated the trees were aspen trees removed as part of a park upgrade project converting the area to an urban plaza with hardscape and tree wells. He noted that three aspens were removed and five replacement trees — two northern red oaks in the park and three lindens in a new boulevard along Ida — were being planted. He stated parks staff had reviewed and provided input into the plan, and expressed confidence that upon completion the public would find the upgraded park space to be a significant improvement. Commissioner Sweeney requested documentation of the public tree reimbursement form, which would typically be signed off by the city forester as part of the development application checklist; City Manager Winn agreed to follow up the next day.

N. Adjournment

No further business coming before the Commission, Mayor Morrison declared the meeting adjourned.